



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE ENGLISH LANGUAGE PROFICIENCY ACT EXCELLENCE AWARD PROGRAM

1 CCR 301-10

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

2224-R-1.00 Statement of Basis and Purpose

These rules are promulgated pursuant to section 22-24-107, C.R.S., which establishes the English Language Proficiency Act Excellence Award Program to award grants to local education providers and charter schools that achieve the highest English language and academic growth among English language learners and the highest academic achievement for English language learners who transition out of the English language proficiency program.

2224-R-2.00 Definitions

2.00 (1) "Charter school" means a charter school authorized by a district pursuant to part 1 of article 30.5 of this title or an institute charter school authorized by the state charter school institute pursuant to part 5 of article 30.5 of title 22.

2.00 (2) "Department" means the Colorado Department of Education.

2.00 (3) "District" means a school district organized and existing pursuant to article 30 of title 22 or a board of cooperative services organized and existing pursuant to article 5 of this title.

2.00 (3) "English language learner" means a student who is linguistically diverse and who is identified pursuant to section 22-24-105(2), C.R.S. as having a level of English language proficiency that requires language support to achieve standards in grade-level content in English.

2.00 (4) "English language proficiency program" means a program implemented by a local education provider that is designed to develop English language proficiency for an English language learner while enabling the English language learner to achieve and maintain grade-level performance in academic content areas.

2.00 (5) "Local education provider" means a district, the state charter school institute, or an approved facility school, as defined in section 22-2-402(1), C.R.S.

2.00 (6) "State charter school institute" means the state charter school institute created pursuant to part 5 of article 30.5 of title 22.

2224-R-3.00 The English Language Proficiency Act Excellence Award Program

3.00 (1) Award Timeline

By December 1 of each year, when data and appropriations are available, the Department will identify the local education providers and charter schools that achieve the highest English language and academic growth among English language learners and that achieve the highest academic achievement for English language learners who transition out of the English language proficiency program.

3.00 (2) Award Procedures

The Department will develop and provide an application for funds to local education providers and charter schools that qualify for the excellence award grant. The application will request contact information and an agreement to program reporting requirements detailed in section 4.00 (5) of the English Language Proficiency Act Excellence Award Program Rules.

3.00 (3) Criteria to Identify Highest Academic Growth

All eligible local educator providers and charter schools accepting award will be in compliance with all state and federal legal requirements, unless they have received an exception to the requirements. The following criteria will be used by the Department to identify the local education providers and charter schools that achieve the highest English language and academic growth among English language learners in an English language proficiency program and that achieve the highest academic achievement for English language learners who transition out of an English language proficiency program:

3.00 (3) (a) High growth percentiles on the state's English language proficiency assessment for English language learners in an English language proficiency program;

3.00 (3) (b) High growth percentiles on the state's academic content assessments for English language arts and math for English language learners in an English language proficiency program, as described in section 22-7-1006.3, C.R.S.; and

3.00 (3) (c) High percentages of students who meet or exceed expectations on the state content assessments on the state content assessments for English language arts and math (and, when available, science and social studies) for English language learners who have transitioned out of an English language proficiency program, as described in section 22-7-1006.3, C.R.S.

3.00 (4) Duration and Amount of Grant Awards.

Subject to available appropriations, the Department will award grants to local education providers and charter schools pursuant to the English Language Proficiency Act Excellence Award Program. The amount of the grant award will be based on the student enrollment of the local education providers and charter schools receiving the award and the concentration of English language learners enrolled by the local education provider and charter schools as a percentage of the total student enrollment. Each grant will have a term of one fiscal year.

3.00 (5) Reporting

3.00 (5) (a) Each local education provider and charter school that receives a grant pursuant to this section, at the conclusion of each school year for which it receives a grant, must submit to the Department:

- (i) A data analysis and summary of the local education provider's or charter school's English language proficiency program; and
- (ii) A report of the local education provider's or charter school's use of the grant moneys received.

3.00 (5) (b) The Department will provide the information received pursuant to section 22-24-107(3)(a), C.R.S. to local education providers and will make the information available to the public through the data portal operated pursuant to section 22-11-502, C.R.S.

Editor's Notes

History

Entire rule emer. rule eff. 09/10/2014; expired 01/08/2015.

Entire rule eff. 01/30/2015.

Rules 2224-R-3.00 (3), 2224-R-3.00 (4) eff. 09/30/2018.

Entire rule eff. 04/30/2020.